

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DESTINY HURT,

Plaintiff,

- against -

INDEX NO.

SUMMONS

**Plaintiff designates County of
New York as the place of trial.**

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
DEPARTMENT OF PARKS AND RECREATION,
LIUETENANT MARIC (BADGE NUMBER UNKNOWN),
OFFICER GOMEZ BADGE #15522, OFFICER FERMIN
BADGE #21556, OFFICER JONES BADGE #2101,
OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA
BADGE #10181, JOHN DOE POLICE/PARK OFFICERS
(WHOSE NAMES ARE PRESENTLY UNKNOWN) 1-10 and
JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE
NAMES ARE PRESENTLY UNKNOWN)**

**The basis of venue is the
location of the incident
[CPLR §503(a)]: Washington
Square, New York, NY 10012**

Defendants,

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TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED and required to serve upon the Plaintiff's attorney an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY

November 4, 2024

Adam Thompson

ADAM M. THOMPSON, P.C.
Attorney for Plaintiff
48 Wall Street, Suite 1100
New York, NY 10005

TO:

THE CITY OF NEW YORK
100 Church Street,
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path,
New York, NY 10038

THE NEW YORK CITY DEPARMTENT OF PARKS AND RECREATION
830 Fifth Avenue,
New York, NY 10065

LIUETENANT MARIC (BADGE NUMBER UNKNOWN)
1 Police Plaza Path,
New York, NY 10038

OFFICER GOMEZ BADGE #15522
1 Police Plaza Path,
New York, NY 10038

OFFICER FERMIN BADGE #21556
1 Police Plaza Path,
New York, NY 10038

OFFICER JONES BADGE #2101
1 Police Plaza Path,
New York, NY 10038

OFFICER VITALE BADGE #1036
1 Police Plaza Path,
New York, NY 10038

OFFICER DIAZZABALA BADGE #10181
1 Police Plaza Path,
New York, NY 10038

JOHN DOE POLICE/PARK OFFICERS
Address currently unknown

JANE ROE POLICE/PARK OFFICERS
Address currently unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DESTINY HURT,

INDEX NO.

Plaintiff,

- against -

VERIFIED
COMPLAINT

**Plaintiff demands trial by
Jury**

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
DEPARTMENT OF PARKS AND RECREATION,
LIUETENANT MARIC (BADGE NUMBER UNKNOWN),
OFFICER GOMEZ BADGE #15522, OFFICER FERMIN
BADGE #21556, OFFICER JONES BADGE #2101,
OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA
BADGE #10181, JOHN DOE POLICE/PARK OFFICERS
(WHOSE NAMES ARE PRESENTLY UNKNOWN) 1-10 and
JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE
NAMES ARE PRESENTLY UNKNOWN)**

**Plaintiff designates County of
New York as The Place of trial**

Defendants,

-----X

Plaintiff DESTINY HURT by her attorney, ADAM M. THOMPSON, ESQ. complaining of the
DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION,
LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522,
OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101,
OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181
JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY
UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE
PRESENTLY UNKNOWN) (hereinafter, “DEFENDANTS”) herein alleges as follows:

PRELIMINARY STATEMENT

1. That, on August 12, 2023, at or around 3:00 p.m., PLAINTIFF, DESTINY HURT, was assaulted, harassed, abused, battered, publicly humiliated, a victim of excessive force, falsely seized, detained, and arrested and deprived of her civil and constitutional rights by City of New York, , THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION and the New York Police Department and its officers/employees including but not limited to DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN)
2. That, PLAINTIFF, DESTINY HURT, who was lawfully at the park, doing nothing wrong or illegal or improper, lawfully sitting at a table, exercising her protected First Amendment rights, including but not limited to Right to Assembly, Freedom of Speech, and Freedom of Religion, around the fountain at Washington Square Park, with religious articles offered for donation, and speaking with others about her religious beliefs or ideas or materials, was improperly approached by DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), without any legal basis to do so, and not articulable facts or probable cause, and no evidence of a crime being committed alleging that the PLAINTIFF's "umbrella" was against park regulations due to its dimensions/size.

3. The plaintiff had previously been in the same park, at the same location, doing the exact same conduct, on numerous prior occasions, where she was told it was legal to do, and other law enforcement officers told her it was acceptable and legal to use.
4. There was not a prior problem with using that umbrella previously. There was no claim that its size or dimensions were illegal or not allowed.
5. That DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), alleged that PLAINTIFF's umbrella exceeded park regulations due to its dimensions/size.
6. That PLAINTIFF, DESTINY HURT, was and still is a citizen protected by her First Amendment rights to Freedom of Speech, Religion, and Assembly and a protected person in the park offering religious items for donations and/or speaking with others about her religion and beliefs or materials.
7. The Plaintiff has been going to Washington Square Park in this capacity for many prior to this violent attack and arrest, and witnessed the improper, arbitrary, biased and inconsistent enforcement of restrictions by DEFENDANTS against people in the park including but not limited to vendors, artists, performers, and others.
8. That, DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), surrounded PLAINTIFF and attempted to confiscate her

umbrella, and thereafter surrounded PLAINTIFF and verbally seized, detained, assaulted, humiliated, and threatened her.

9. That, DEFENDANT JOHN DOE POLICE/PARK OFFICERS 1-10 and JANE ROE POLICE/PARK OFFICERS 1-10 verbally assaulted, seized, detained, humiliated, and threatened PLAINTIFF, and all without PLATINFF's consent or legal authority to do so, or right of law, began to seize, attack, touch, grab, punch, pull, restrain, kick, strangle, scratch, and detain PLAINTIFF.
10. The Plaintiff, while detained and under the control and in custody of the Defendants, and surrounded by several police officers, with a male police officer holding her down, on top of her, on her back from behind, violently punched her in the face/head causing serious personal injury to the Plaintiff. This was witnessed by everyone at the park and videotaped.
11. The PLAINTIFF was restrained by handcuffs, forcibly seized and detained, falsely arrested and falsely imprisoned.
12. That, PLAINTIFF requested to have a female arresting officer and DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) denied that request.
13. That, PLAINTIFF was taken to the NYPD 006th Precinct where she requested medical attention, which was initially refused by DEFENDANTS and then untimely provided.
14. The actions by DEFENDANTS directly resulted in serious and lasting physical and psychological injuries to the Plaintiff.
15. The actions by DEFENDANTS also caused PLAINTIFF extreme pain and suffering as well as mental/emotional distress.

16. The abovementioned incident was a result of DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN)'s willful, intentional, negligent, reckless, and careless actions, improper use of force violently assaulting and battering the Plaintiff, including punching her in the face, while on the ground, and an officer on top of her and surrounded by other police officers in custody, improperly hitting and striking the Plaintiff while in custody, as well as a failure to ensure safety to civilians, failure to enforce rules properly, refrain from hiring, training, supervising and retaining police/park officers, officials, agents, and employees unfit to perform duties as a reasonable police/park officers, officials, agents, and employees would in the same situation, failure to perform their job in a proper and correct manner, improper enforcement of regulations, harassment, abuse of process and other negligent acts and omissions described herein

THE PARTIES

17. That at all times hereinafter mentioned, PLAINTIFF DESTINY HURT, was and still is a resident of The County of Richmond, City and State of New York.
18. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT LIEUTENANT MARIC, was and is a Lieutenant employed by the DEFENDANT, NEW YORK CITY POLICE DEPARTMENT, and at all times hereinafter mentioned was acting in such capacity as the agent, servant, and employee of the DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.
19. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,

OFFICER GOMEZ BADGE #15522, was and is a police officer employed by the
DEFENDANT NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter
mentioned was acting in such capacity as the agent, servant, and employee of the
DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

20. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,
OFFICER FERMIN BADGE #21556, was and is a police officer employed by the
DEFENDANT NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter
mentioned was acting in such capacity as the agent, servant, and employee of the
DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

21. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,
OFFICER JONES BADGE #2101, was and is a police officer employed by the DEFENDANT
NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter mentioned was acting
in such capacity as the agent, servant, and employee of the DEFENDANTS CITY OF NEW
YORK and/or NEW YORK CITY POLICE DEPARTMENT.

22. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,
OFFICER VITALE BADGE #1036, was and is a police officer employed by the
DEFENDANT NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter
mentioned was acting in such capacity as the agent, servant, and employee of the
DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

23. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,
OFFICER DIAZZABALA BADGE #10181, was and is a police officer employed by the
DEFENDANT NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter
mentioned was acting in such capacity as the agent, servant, and employee of the
DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

24. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT,
JOHN DOE POLICE/PARK OFFICER 1-10, was and is a police/park officer employed by the

DEFENDANT NEW YORK CITY POLICE DEPARTMENT and/or NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, an at all times hereinafter mentioned was acting in such capacity as the agent, servant, and employee of the DEFENDANTS CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT and/or NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION.

25. That on and prior to August 12, 2023, and at all times hereinafter mentioned, DEFENDANT, JANE ROE POLICE/PARK OFFICER 1-10, was and is a police/park officer employed by the DEFENDANT NEW YORK CITY POLICE DEPARTMENT, an at all times hereinafter mentioned was acting in such capacity as the agent, servant, and employee of the DEFENDANTS CITY OF NEW YORK and/or THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION and/or NEW YORK CITY POLICE DEPARTMENT.
26. That at all times hereinafter mentioned, DEFENDANT, CITY OF NEW YORK, was and still is a public authority, duly organized and existing under and by virtue of the laws of the State of New York.
27. That at all times hereinafter mentioned DEFENDANT, NEW YORK CITY POLICE DEPARTMENT, was and still is an agency of the DEFENDANT, CITY OF NEW YORK, duly organized and existing under and by virtue of the laws of the State of New York.
28. That at all times hereinafter mentioned DEFENDANT, NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, was and still is an agency of the DEFENDANT, CITY OF NEW YORK, duly organized and existing under and by virtue of the laws of the State of New York.

PLAINTIFF'S COMPLIANCE WITH THE GENERAL MUNICIPAL LAW

29. Plaintiff has satisfied and met all requirements and prerequisites for this case.
30. On September 26, 2023, within 90 days after the claim herein sued upon arose, PLAINTIFF by their undersigned counsel, personally filed with DEFENDANT CITY OF NEW YORK a Notice of Claim, in writing, sworn to, by and on behalf of the PLAINTIFF in compliance with

New York State General Municipal Law §50-e.

31. Plaintiff has duly filed and served a NOTICE OF CLAIM on DEFENDANTS within 90 days of incident with attachments of all relevant information regarding the claim herein sued upon.

32. More than 90 days have elapsed since the filing of the Notice of Claim.

33. That, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 have failed to serve PLAINTIFFS with a notice setting forth a date certain for a physical examination within 90 days of the filing of the Notice of Claim in compliance with New York General Municipal Law §50-h (1) and (2), and therefore no such notice is effective for any purpose pursuant to New York General Municipal Law §50-h (2).

34. DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10, based on their failure to serve PLAINTIFFS with a notice for a physical examination within 90 days of the filing of the Notice of Claim, have waived their right to conduct such physical examination.

35. A 50-H hearing was held on February 12, 2024, in compliance with the General Municipal Law § 50-H.

36. That at least 30 days have elapsed since the service of the Notice of Claim, and that

adjustment or payment thereof has been neglected or refused by the DEFENDANTS.

37. This action commenced within one year and 90 days after the occurrence of the events upon which the claim is based.

COMMON ALLEGATIONS

38. That DEFENDANT, CITY OF NEW YORK, owns, manages, operate, maintains controls and is responsible for the practices, policies, and customs of the DEFENDANT NEW YORK CITY POLICE DEPARTMENT, and is responsible for the hiring, screening, training, supervising, controlling disciplining and retaining those persons employed by the NEW YORK CITY POLICE DEPARTMENT, and any companies, corporations, organizations, or entities it contracts with.
39. That DEFENDANT, CITY OF NEW YORK, owns, manages, operate, maintains controls and is responsible for the practices, policies, and customs of the DEFENDANT NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, and is responsible for the hiring, screening, training, supervising, controlling disciplining and retaining those persons employed by the NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, and any companies, corporations, organizations, or entities it contracts with.
40. That DEFENDANT, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT is responsible for the hiring, screening, training, supervising, controlling, disciplining, and retaining of those persons they employ, including DEFENDANT(s) LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10.
41. That DEFENDANT, CITY OF NEW YORK and/or NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION is responsible for the hiring, screening, training, supervising,

controlling, disciplining, and retaining of those persons they employ, including DEFENDANT(s), JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10.

42. That DEFENDANT, NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, is responsible for, the day-to-day management of Washington Square Park and the establishment, enforcement of rules and regulations for vendors and visitors at the park, and the maintenance of public safety.

43. That DEFENDANT, NEW YORK CITY POLICE DEPARTMENT, is responsible for, the day-to-day management of Washington Square Park and the establishment, enforcement of rules and regulations for vendors and visitors at the park, and the maintenance of public safety.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
ASSAULT AND BATTERY

44. That, PLAINTIFF, DESTINY HURT, repeats, reiterates and realleges every allegation contained in paragraphs “1” through “44” of the Complaint herein with the same force and effect as though the same were recited here in full.

45. That, on August 12, 2023, at or around 3:00 p.m., PLAINTIFF, DESTINY HURT, was seized, detained, searched, assaulted, harassed, abused, battered, publicly humiliated, a victim of excessive force, falsely arrested and deprived of her civil and constitutional rights by DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN)

46. That, PLAINTIFF, DESTINY HURT, who was lawfully at the park, doing nothing wrong or illegal or improper, lawfully sitting at a table, exercising her protected First Amendment rights,

including but not limited to Right to Assembly, Freedom of Speech, and Freedom of Religion, around the fountain at Washington Square Park, with religious articles offered for donation, and speaking with others about her religious beliefs or ideas or materials, was improperly approached by DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), without any legal basis to do so, and not articulable facts or probable cause, and no evidence of a crime being committed alleging that the PLAINTIFF's "umbrella" was against park regulations due to its dimensions/size.

47. That DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), alleged that PLAINTIFF's umbrella exceeded park regulations due to its dimensions/size.

48. The plaintiff had previously been in the same park, at the same location, doing the exact same conduct, on numerous prior occasions, where she was told it was legal to do, and other law enforcement officers told her it was acceptable and legal to use.

49. There was not a prior problem with using that umbrella previously. There was no claim that its size or dimensions were illegal or not allowed.

50. That PLAINTIFF, DESTINY HURT, was and still is a citizen protected by her First Amendment Rights to Freedom of Speech, Religion, and Assembly and a protected person in the park offering religious items for donations and/or speaking with others about her religion

and beliefs or materials.

51. The Plaintiff has been going to Washington Square Park in this capacity for many prior to this violent attack and arrest, and witnessed the improper, arbitrary, biased and inconsistent enforcement of restrictions by DEFENDANTS against people in the park including but not limited to vendors, artists, performers, and others.
52. That, DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), surrounded PLAINTIFF and attempted to confiscate her umbrella, surrounded PLAINTIFF and seized, detained, verbally assaulted, humiliated, and threatened her.
53. That, DEFENDANT JOHN DOE POLICE/PARK OFFICERS 1-10 and JANE ROE POLICE/PARK OFFICERS 1-10 seized, detained, verbally assaulted, humiliated, and threatened PLAINTIFF and without PLATINFF's consent or permission, legal authority to do so, or right of law, began to improperly seize, attack, touch, grab, punch, pull, restrain, kick, strangle, scratch, and detain PLAINTIFF.
54. That, PLAINTIFF, was restrained by handcuffs, forcibly detained, falsely arrested and falsely imprisoned.
55. The Plaintiff while detained and under the control and in custody of the Defendants, was surrounded by several police officers, with a male police officer holding her down, on top of her, on her back from behind, violently punched her in the face/head causing serious personal injury to the Plaintiff. This was witnessed by everyone at the park and videotaped.
56. That, PLAINTIFF requested to have a female arresting officer and DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE

#15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) denied that request.

57. That, PLAINTIFF was taken to the NYPD 006th Precinct where she requested medical attention which was initially refused by DEFENDANTS and then untimely provided.

58. The actions by DEFENDANTS directly resulted in serious and lasting physical and psychological injuries.

59. The actions by DEFENDANTS also caused PLAINTIFF extreme pain and suffering as well as mental/emotional distress, including but not limited to while detained and under the control and in custody of the Defendants, and surrounded by several police officers, with a male police officer holding her down, on top of her, on her back from behind, violently punched her in the face/head causing serious personal injury to the Plaintiff. This was witnessed by everyone at the park and videotaped.

60. The abovementioned incident was a result of DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN)'s willful, intentional, negligent, reckless, and careless actions, as well as a failure to ensure safety to civilians, failure to enforce rules properly, refrain from hiring, training, supervising and retaining police/park officers, officials, agents, and employees unfit to perform duties as a reasonable police/park officers, officials,

agents, and employees would in the same situation, failure to perform their job in a proper and correct manner, improper enforcement of regulations, harassment, abuse of process and other negligent acts and omissions described herein.

61. That DEFENDANTS, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), were the initial aggressors, and violently, willfully, and intentionally, touched, attacked, hit, made contact with, battered, harmed, handcuffed, seized and arrested PLAINTIFF with excessive and extreme force, including

62. That, DEFENDANTS, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), who unlawfully physically touched, seized and detained PLAINTIFF, DESTINY HURT, without justification, legal cause, probable cause, permission or consent, to touch her about her person and further placed handcuffs on PLAINTIFF.

63. That PLAINTIFF, DESTINY HURT, did nothing wrong, was not the initial aggressor, and was not culpable in any way, but rather was the victim of a crime in a violently orchestrated attack and unlawful arrest.

64. That PLAINTIFF did not consent to, give permission, or authorize the unlawful touching of her person or her body by the DEFENDANTS, or agree to be touched in any way.

65. That all DEFENDANTS actions were contrary to existing NYS Laws and Regulations, Federal and State Constitutions, and local NY civil rights laws and codes, case law and NYPD patrol

guidelines, regulations and directives.

66. That the unlawful actions of the DEFENDANT(s) LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), includes but is not limited to, the use of excessive and gratuitous force, the lack female officers present to properly detain and search PLAINTIFF, the improper seizure by a Male Officer placing knee and entire bodyweight on PLAINTIFF's back with her arms folded underneath her, illegal search without reasonable cause or suspicion, improper seizure, detainment, and arrest, punch/grab/slam/strike PLAINTIFF without legal or conscionable reasoning, forcibly seized, searched and touched PLAINTIFF about her body by DEFENDANTS without cause, reason, probable cause, or her consent or permission, denial of PLAINTIFF's constitutional and civil rights to be free from illegal search and seizure and the First Amendment right to sell expressive merchandise, denial of timely medical treatment for injuries while in police custody, processing PLAINTIFF while improperly clothed and without shoes, improper seizure of PLAINTIFF's expressive materials, religious items and artwork, destruction of PLAINTIFFS personal property, religious idols and figurines, artwork and other expressive materials.
67. That by reason of all of the foregoing, PLAINTIFF HURT's injuries include but not limited to, concussion syndrome and TBI from violent blow to the head/face, injury to the wrist and back, cuts and bruising to both knees, loss of normal daily activities, Separation from family, loss of employment opportunities, loss of services and consortium, trespass upon PLAINTIFF HURT's person, trespass upon PLAINTIFF HURT's personal property, destruction of PLAINTIFF HURT's personal property, mental anguish as well as other psychological injuries, including but not limited to, shame, humiliation, indignity, and emotional distress, damages to reputation,

character and credit, damage to personal property and severe emotional distress.

68. PLAINTIFF sustained the above-mentioned injuries and damages and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR § 1983 VIOLATION

69. PLAINTIFF DESTINY HURT, repeats, reiterates and realleges every allegation contained in paragraphs “1” through “69” of the Complaint herein with the same force and effect as though the same were recited here in full.

70. That the violation of Civil Rights under 42 U.S.C. § 1983 by DEFENDANTS deprived PLAINTIFF of her rights privileges and immunities secured by the Constitution and Law of the United States of American by one or more individuals who, under color of a statute or regulation of a Statue, caused PLAINTIFF to be so deprived, and other and further violations of PLAINTIFF’s rights under the Constitutions of the United States and the State of New York.

71. The actions of DEFENDANTS above referenced, constitute unlawful and false arrest, imprisonment, detention, assault and battery, and malicious prosecution which caused serious bodily harm, violations of her First Amendments rights to Freedom of Speech, Religion, and Assembly, pain and suffering and other permanent and lasting injuries, in violation of PLAINTIFF’S Constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the United States Constitution’s First, Fourth, and Fourteenth Amendments and the Constitution of the State of New York.

72. That conduct by the DEFENDANTS, including but not limited to the following, assault and battery, use of excessive force, false arrest, false imprisonment, and malicious prosecution, violated PLAINTIFF’s rights to equal protection, due process and other protections afforded under the United States Constitution’s First, Fourth, and Fourteenth Amendments and the

Constitution of the State of New York.

73. That DEFENDANTS, violated PLAINTIFF, HURT's civil rights by subjecting her to an illegal search and seizure, assault and battery, excessive force, and false arrest and imprisonment, and obstruction of her rights under the First Amendment to Freedom of Speech, Religion and Assembly, and the promotion and/or donation of/ and/or sale of First Amendment protected items in violation of 42 U.S.C. §1983, the Constitution and the Constitution of the State of New York.
74. That DEFENDANTS conduct of assault and battery, PLAINTIFF's false arrest and imprisonment, excessive force, malicious prosecution and abuse of process, denial of her First Amendment Rights, deprived PLAINTIFF of the rights, privileges and immunities guaranteed by the United States Constitution, the New York State Constitution, the Civil Rights Act and 42 U.S.C. § 1983.
75. As a result, aforementioned violations of PLAINTIFFS' civil rights, PLAINTIFF was caused to sustain and suffer personal injuries, violation of civil rights emotional distress, public humiliation, fear and anxiety and damage to her reputation and standing within her community.
76. That, PLAINTIFF sustained the above-mentioned injuries and damages and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR FALSE
ARREST AND FALSE IMPRISONMENT**

77. PLAINTIFF DESTINY HURT, repeats, reiterates and realleges every allegation contained in paragraphs "1" through "77" of the Complaint herein with the same force and effect as though the same were recited here in full.
78. That the DEFENDANTS themselves and/or through their agents, servants, and/or employees were aware that probable cause did not exist for the seizure, arrest and detention of the PLAINTIFF and that said seizure, arrest and detention was unlawful and without justification

or excuse.

79. Upon information and belief, in all the wrongful acts above alleged, DEFENDANTS, through their agents, servants, and/or employees acted without reasonable or probable cause and with malicious intent to arrest, oppress and violate the rights of PLAINTIFF and said actions were committed in bad faith and contrary to law.
80. The plaintiff did not consent or give permission for such detention or seizure or arrest, and such conduct was expressly prohibited by law.
81. That by reason of the foregoing, PLAINTIFF was falsely arrested and illegally deprived of her liberty and civil rights, was caused to and did incur related expenses and is thereby damaged in sum of money exceeding the jurisdiction of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR FALSE IMPRISONMENT**

82. That, PLAINTIFF, DESTINY HURT, repeats and re-alleges each and every allegation contained in paragraphs “1” through “82” of the Complaint herein.
83. That PLAINTIFF was falsely imprisoned by DEFENDANTS, through their agents, servants and/or employees, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), who procured and/or effected said false imprisonment, knowing their actions to be wrongful and malicious and without any basis, which false imprisonment commenced at or about 3:00 p.m. on the 12th day of August 2023, where PLAINTIFF was subjected to an orchestrated attack by DEFENDANTS, seized, restrained, detained, held against her will, handcuffed and processed.

84. That the DEFENDANTS, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE

DEPARTMENT, through their agents, servants, and/or employees, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), intended to confine the PLAINTIFF and PLAINTIFF was conscious of the confinement and PLAINTIFF did not consent to confinement.

85. That the DEFENDANTS' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis, without probable cause, committed in bad faith and solely for the purpose of falsely imprisoning the plaintiff and damaging the PLAINTIFF in her reputation and depriving her of her liberty.
86. The plaintiff did not consent or give permission for such detention or seizure or arrest or actions, and such conduct was expressly prohibited by law.
87. That by reason of the foregoing, PLAINTIFF was falsely imprisoned and illegally deprived of her liberty and civil rights, was caused to and did incur expenses and damages and is thereby damaged in a sum of money exceeding the jurisdiction of all lower court.

AS AN FOR A FOURTH CAUSE OF ACTION ON BEHLAF OF
PLAINTIFF FOR NEGLIGENCE

88. That, PLAINTIFF DESTINY HURT, repeats and re-alleges each and every allegation contained in paragraphs "1" through "88 of the Complaint herein.
89. That DEFENDANTS, on the 12th day of August 2023, were negligent in their handling of the situation in its entirety. The DEFENDANTS failed to perform as reasonable professionals in their respective fields of practice, including but not limited to, Police officers, Police Lieutenants, Parks and Recreation Officers and Officials. DEFENDANTS all failed to perform as reasonably trained, and properly supervised, similar or like professionals, under the same

circumstances would have performed. The DEFENDANTS' conduct and unlawful actions were clearly negligent in breach of their responsibilities, duties and assignments.

90. That DEFENDANTS owed a duty to PLAINTIFF, DESTINY HURT, including but not limited to the following: to protect her and others at the park, to enforce rules and regulations in an unbiased and uniform fashion, to preserve the peace, to refrain from interfering with Constitutionally protected activities, to mitigate risk, to equally protect the civil rights of all citizens, to properly question and/or speak with members of the public, to refrain from use of excessive force, to refrain from making unjustified and illegal stop and arrests, and to abide by proper procedure in the search, seizure and detainment of suspected persons and proper use of force.

91. That DEFENDANTS breached those duties owed to PLAINTIFF by their actions which includes but not limited to the following: negligently, carelessly, and/or recklessly failing to, Protect PLAINTIFF, preserve the peace, properly enforce the rules and regulations, protect the civil and Constitutional rights of citizens, properly make authorized arrests, conduct properly founded search and seizures, properly search and detain a female suspect with the appropriate female officers present, using excessive force against plaintiff, making an illegal stop and arrest, and failing to abide by the rules and regulations established and failure to oversee Constitutionally protected activities.

92. That DEFENDANTS, particularly LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), on the 12th day of August, 2023, throughout the course of the above-referenced incident were acting in the performance of their employment and within the scope of their authority.

93. That DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, through their agents, servants, and/or employees, including but limited to, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), breached their duty to PLAINTIFF, as Police Officers and Park Officers, when they negligently, carelessly, and/or recklessly, touched and assaulted PLAINTIFF without justification or consent, searched and seized PLAINTIFF's person and property without probable cause, enforced rules and regulations in a biased and arbitrary fashion, used excessive and unreasonable force to detain PLAINTIFF without reason or probable cause, infringed on PLAINTIFF's the civil and Constitutional rights, interfered with and/or prohibited PLAINTIFF's Constitutionally protected activities and destroyed PLAINTIFFS personal property and religious paraphernalia and violently detained plaintiff, throwing her to the ground, and while in custody, a male officer on top of her, and surrounded by several police officers, was violently punched in the face/head by said male officer.

94. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION their agents, servants and employees, were negligent in the hiring, training, supervising, and retaining of a person or persons who was/were unfit to serve as Police and Parks and Recreation Officers and Officials and who knew or should have known that said persons had negligent, reckless, careless or dangerous propensities and lacked the proper temperament, reliability, responsibility, carefulness and prudence; were negligent in the investigation of the background and/or employment records and/or criminal records or had

knowledge of said records of said Police and Parks and Recreation Officers and Officials, thereafter hiring and/or retaining said unfit Police and Parks and Recreations Officers and Officials.

95. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION their agents, servants and employees, were negligent in their duty to hire, screen, train, supervise, and instruct its Police and Parks and Recreation's Officers/Officials and representatives of THE CITY OF NEW YORK and in the training and instruction on, among other this, the proper use of force, proper search and seizure protocols, protocols for valid arrest of female suspect, proper enforcement of rules and regulations and knowledge of rules and regulations, and Constitutional Rights, First Amendment Rights, Fourth Amendment Rights, and other related Federal, State, and local NY civil rights laws and codes.
96. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION their agents, servants and employees, were negligent in the establishment of procedures, rules, and/or regulations for said Police and Parks and Recreations Officers and Officials, in that, lack of such, procedures, rules, and/or regulations or the inadequate drafting and/or enforcement of such procedures, rules, and/or regulations, were a factual and proximate cause of the injuries to PLAINTIFF since the PLAINTIFF was damaged due to a lack of proper measure taken which was a clear function of an inadequate or non-existent set of procedures, rules, and/or regulations.
97. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION their agents, servants and employees, were negligent in the performance of their duties as a reasonably prudent and careful Police and Parks and Recreations Officer/Official would have used under similar circumstances, all without any

negligent on the part of the PLAINTIFF contributing thereto.

98. That by reason of the foregoing, PLAINTIFF was falsely imprisoned and illegally deprived of her liberty and civil rights, was caused to and did incur expenses and damages and is thereby damaged in a sum of money exceeding the jurisdiction of all lower court.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR INFLICTION OF MENTAL DISTRESS

99. That, PLAINTIFF DESTINY HURT, repeats and re-alleges each and every allegation contained in paragraphs “1” through “99” of the Complaint herein with the same force and effect as though the same were recited here in full.
100. That at all times hereinafter mentioned, DEFENDANTS intentionally and/or negligently inflicted emotional and mental distress upon PLAINTIFF when DEFENDANTS LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), touched and violently assaulted PLAINTIFF without justification or consent, searched and seized PLAINTIFF’s person and property without probable cause, enforced rules and regulations in a biased and arbitrary fashion, used excessive and unreasonable force to detain PLAINTIFF without reason or probable cause, infringed on PLAINTIFF’s the civil and Constitutional rights, interfered with and/or prohibited PLAINTIFF’s Constitutionally protected activities and First Amendment Rights, and destroyed PLAINTIFFS personal property and religious materials/paraphernalia.

101. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY

DEPARTMENT OF PARKS AND RECREATION, through their agents, servants, and employees, including but not limited to, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) all acting in their performance of their employment and within the scope of their authority, by extreme and outrageous conduct and/or performance of duties, responsibilities and/or assignments intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional and mental distress to PLAINTIFF.

102. That at all times hereinafter mentioned DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, through their agents, servants, and employees, including but not limited to, LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional distress to PLAINTIFF by verbal humiliation, assault, battery, improper search and seizure, false arrest and imprisonment, persistent harassment and improper enforcement of park regulations

103. That by reason of all the foregoing, negligence, recklessness, and carelessness of the DEFENDANTS, the assault and battery by the DEFENDANTS and the infliction of emotional and mental distress by the DEFENDANTS, PLAINTIFF's injuries include but not limited to, head trauma and TBI from violent blows to the head, concussion syndrome, pain/sprain of the

neck, lower back, right elbow and lacerations to both knees, loss of employment and employment opportunities, trespass and destruction of personal property as well as religious paraphernalia, damage to reputation, character and credit, deprivation of personal, civil rights and civil liberties, suffering loss of normal daily activities, severe emotional distress, shame, humiliation and indignity, and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF

PLAINTIFF FOR MALICIOUS PROSECUTION

104. That, PLAINTIFF DESTINY HURT, repeats and re-alleges each and every allegation contained in paragraphs “1” through “104” of the Complaint herein with the same force and effect as though the same were recited here in full.
105. That the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, its agents, servants, employees and or police officers, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), were all acting in the performance of their employment and within the scope of their authority against the PLAINTIFF, by bringing the PLAINTIFF before the New York Criminal Court for “erect structure causing street obstruction, unlicensed vending and other crimes” .
106. That DEFENDANTS, their agents, servants, employees, and/or officers all acting in the performance of their employment and within the scope of their authority which by extreme and

outrageous conduct and/or negligent performance of duties, responsibilities and/or assignments, intentionally, recklessly, carelessly, negligently, and/or maliciously caused emotional distress to PLAINTIFF.

107. That the DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, its agents, servants, employees and or police officers, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), after harassing PLAINTIFF about arbitrarily and improperly enforced regulations, threatening PLAINTIFF, verbally humiliating and assaulting PLAINTIFF, illegally searching and seizing PLAINTIFF and her property, Battering and striking PLAINTIFF about her person without justification or consent, then proceeded to arrest and charge Plaintiff without probable cause and in direct contradiction with proper procedure.
108. That PLAINTIFF appeared in court and had the matter dismissed in her favor, due to insufficient evidence.
109. The case was dismissed and sealed in her favor.
110. The PLAINTIFF had to appear because the DEFENDANTS filed and pursued knowingly false and improper and baseless criminal charges against her.
111. That all charges were dismissed in PLAINTIFF's favor by the court.
112. That PLAINTIFF also had expenses for the defense of these false charges including but not limited to hiring defense counsel and incurring legal fees, and other related litigation costs.
113. That DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND

RECREATION, their agents, servants, employees and/or Police and Parks and Recreations Officers/Officials had no probable cause for the criminal proceeding, and the arrest, detention and criminal proceedings initiated, performed, continued, and executed against the PLAINTIFF was done with malice.

114. That by reason of the foregoing, the PLAINTIFF herein, was caused to be falsely arrested and illegally deprived of her liberty and civil rights; was caused to suffer imprisonment and confinement, was caused to suffer conscious pain and suffering; was caused to suffer great shock to her nervous system; was maliciously prosecuted; was assaulted and battered and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FOR ABUSE OF PROCESS

115. That, PLAINTIFF DESTINY HURT, repeats and re-alleges each and every allegation contained in paragraphs “1” through “1`15” of the Complaint herein with the same force and effect as though the same were recited here in full.
116. That the actions of the DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, through their agents, servants, and/or employees, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), in causing PLAINTIFF to be arrested, falsely imprisoned and maliciously prosecuted, violently assault and battered, victim of excessive force, deprived of her Constitutional Rights,

including Freedom of Speech, Religion, and Assembly, and were effected for ulterior purposes of causing plaintiff to be unlawfully deprived of her liberty and civil rights, to suffer inconvenience, humiliation, shame, embarrassment, damage to her reputation and good name and to incur legal expenses.

117. That the actions of the DEFENDANTS, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION, through their agents, servants, and/or employees, including but not limited to LIUETENANT MARIC (BADGE NUMBER UNKNOWN), OFFICER GOMEZ BADGE #15522, OFFICER FERMIN BADGE #21556, OFFICER JONES BADGE #2101, OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA BADGE #10181, JOHN DOE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN) and JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE NAMES ARE PRESENTLY UNKNOWN), falsely arrested, imprisoned and prosecuted PLAINTIFF without probable cause or reasonable suspicion, and without consent or permission of the plaintiff, and without any legal basis in law.

118. That the false imprisonment and prosecution of PLAINTIFF by the DEFENDANTS was wrongful, malicious, willful and without justification or excuse and an abuse of judicial process.

119. That by the reason of the foregoing, the Plaintiff was under color of process, unlawfully deprived of her liberty and civil rights, caused to suffer inconvenience, humiliation, shame and embarrassment, damage to his reputation and good name and incurred legal expenses all in sum of money exceeding the jurisdiction of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FOR PUNITIVE DAMAGES

120. PLAINTIFF DESTINY HURT, repeats, reiterates and realleges every allegation contained in paragraphs “1” through “120” of the Complaint herein with the same force and effect as though the same were recited here in full.
121. The named Defendants conduct in this matter shocks the conscience.
122. The named Defendants conduct and actions towards the Plaintiff is beyond any measure of proper and acceptable conduct, actions, or behavior, and as such should be strictly prohibited and rejected by the community at large and society.
123. To prevent it from occurring in the future, and to deter other similarly situated, not to perform or act in the same manner, plaintiff seeks punitive damages against all named Defendants.
124. As a result of the Defendant's violent attack against the plaintiff, and completely baseless arrest, and other specific egregious conducts, such as "willful and reckless disregard for the Plaintiff's safety," "intentional fraudulent misrepresentations," or "conscious disregard of a known risk"], which constitutes gross negligence, the Plaintiff is entitled to punitive damages to punish the Defendant for their reprehensible conduct and deter future similar actions.
125. Compensatory damages alone are insufficient to deter the defendant and others from engaging in similar conduct.
126. That by the reason of the foregoing, the Plaintiff was under color of process, unlawfully deprived of her liberty and civil rights, caused to suffer inconvenience, humiliation, shame and embarrassment, damage to his reputation and good name and incurred legal expenses all in sum of money exceeding the jurisdiction of all lower Courts.

WHEREFORE, PLAINTIFF demands judgement against the DEFENDANTS in the cause of action for a sum of TWENTY-FIVE MILLION (\$25,000,000) together with interest and the costs and disbursements of this action.

Date: New York, NY
November 4, 2024

Adam M Thompson

ADAM M. THOMPSON, P.C.
Attorney for Plaintiff
48 Wall Street, Suite 1100
New York, NY 10005
212-267-2424

TO:
THE CITY OF NEW YORK
100 Church Street,
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path,
New York, NY 10038

THE NEW YORK CITY DEPARMTENT OF PARKS AND RECREATION
830 Fifth Avenue,
New York, NY 10065

LIUETENANT MARIC (BADGE NUMBER UNKNOWN)
1 Police Plaza Path,
New York, NY 10038

OFFICER GOMEZ BADGE #15522
1 Police Plaza Path,
New York, NY 10038

OFFICER FERMIN BADGE #21556
1 Police Plaza Path,
New York, NY 10038

OFFICER JONES BADGE #2101
1 Police Plaza Path,
New York, NY 10038

OFFICER VITALE BADGE #1036

1 Police Plaza Path,
New York, NY 10038

OFFICER DIAZZABALA BADGE #10181

1 Police Plaza Path,
New York, NY 10038

JOHN DOE POLICE/PARK OFFICERS

Address currently unknown

JANE ROE POLICE/PARK OFFICERS

Address currently unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DESTINY HURT,

INDEX NO.

Plaintiff,

**ATTORNEY
AFFIRMATION**

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
DEPARTMENT OF PARKS AND RECREATION,
LIUETENANT MARIC (BADGE NUMBER UNKNOWN),
OFFICER GOMEZ BADGE #15522, OFFICER FERMIN
BADGE #21556, OFFICER JONES BADGE #2101,
OFFICER VITALE BADGE #1036, OFFICER DIAZZABALA
BADGE #10181, JOHN DOE POLICE/PARK OFFICERS
(WHOSE NAMES ARE PRESENTLY UNKNOWN) 1-10 and
JANE ROE POLICE/PARK OFFICERS 1-10 (WHOSE
NAMES ARE PRESENTLY UNKNOWN)**

Defendants,

-----X
STATE OF NEW YORK)
)ss:
COUNTY OF NEW YORK)

I, ADAM M. THOMPSON, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by the Plaintiff is because the Plaintiff does not presently reside within the county where deponent maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Papers and records in the deponent's file and conversations with the Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY

November 4, 2024

Adam M. Thompson

ADAM M. THOMPSON, P.C., Partner
Attorney for Plaintiff,
48 Wall Street, 11th Floor
New York, New York 10005
(212) 267-2424